

August 7, 2026
Dept. 9
Civil Tentative Rulings

5.	26CV1756	JASON A BOSTON VS. EDCA LIFE SKILLS ET AL
PETITION FOR WRIT OF MANDATE		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 4, 2026, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On June 24, 2026, Petitioner, Jason Andrew Boston ("Petitioner"), filed a Petition for Judicial Review and Request for Extraordinary Writ of Mandate. Petitioner named Director of the California Department of Motor Vehicles, California Department of Motor Vehicles, El Dorado County Alcohol & Drug Program/EDCA Life Skills, and El Dorado County Office of the General Councile [sic] as Defendants. Petitioner also filed a Proof of Service indicating the un-filed pleadings were served by mail prior to filing to Respondents. The Proof of Service is unsigned.

On July 20, 2026, Petitioner field a Proof of Service by Mail indicating California Department of Motor Vehicles, Office of the Director and Legal Affairs were served the filed pleadings. A Notice of Acknowledgment of Receipt by the California Department of Motor Vehicles/Legal Affairs is attached and is signed; however, it does not identify who was signing on behalf of the DMV, nor was the acknowledgment dated, thereby rendering service defective.

On July 20, 2026, Petitioner filed a Proof of Service by Mail indicating EDCA Lifeskills was served the filed pleadings. An unsigned/dated Notice and Acknowledgement of Receipt was attached, rendering service defective.

On July 21, 2026, Petitioner filed a Notice of Corrected Party Designation, designating EDCA Lifeskills Inc. as a Real Party in Interest.

On July 22, 2026, Petitioner dismissed California Department of Motor Vehicles, Office of the Director, California Department of Motor Vehicles, Legal Affairs Division, and El Dorado County Office of the General Counsel, leaving no Respondents and EDCA Lifeskills as the remaining Real Party in Interest.

A writ of mandate may be issued by any court to any inferior tribunal corporation, board, or person to compel the performance of an act which the law specifically enjoins as a duty resulting from an office, trust or station. Code of Civil Procedure § 1085. In a mandate proceeding, the respondent is the party directed to perform the act, while a real party in interest is any person or entity whose interest will be directly affected by the proceeding.

Redevelopment Agency v. Commission on State Mandates (1996) 43 Cal.App.4th 1188, 1197.

//

By dismissing all Respondents, Petitioner's writ of mandate is procedurally defective.

TENTATIVE RULING #5:

PETITIONER'S REQUEST IS DENIED WITHOUT PREJUDICE FOR PROCEDURAL DEFECTS AND DEFECTIVE SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.